THE TRUSTEES FOR THE TIME BEING OF THE HNZ FAMILY TRUST
versus
JC DELONICS INVESTMENTS (PRIVATE) LIMITED

HIGH COURT OF ZIMBABWE
TAKUVA AND CHIKOWERO JJ
HARARE, 4 and 18 June 2026

Civil Appeal

T W Nyamakura, for the appellant
F Chinwawadzimba, for the respondent

CHIKOWERO J:

[1] This is an appeal against the whole judgement of the Magistrates' Court delivered on 9 March 2026 granting a spoliation order in favor of the respondent.

The order reads as follows:

> "1. The application for spoliation be and is hereby granted.
> 2. The respondent be and is hereby ordered to restore full possession, occupation and control of the immovable property known as 31 Fleetwood Avenue, Alexander Park to the applicant.
> 3. There is no order as to costs".

[2] The lower Court granted the spoliation order because it was satisfied that the respondent was in peaceful and undisturbed possession of the property in question prior to the appellant removing the respondent's security personnel from the property, installing its own security personnel on the property, installing surveillance cameras threat as well as communicating directly with tenants directing that rentals be paid straight to the appellant rather than through the respondent .The lower Court found that this amounted to spoliation.

[3] The respondent had been the appellant's agent for the purposes of managing the property in question on behalf of the appellant since 2024.

[4] In opposing the application for a spoliation order the appellant had presented these grounds for the lower Court's consideration. First, that the respondent had been a mere property Manager. Second, that upon cancellation of the property management agreement in December 2025, the respondent lost the right to exercise control over the

property. Third, that the changing of security personnel and installation of cameras on the property did not constitute spoilaton.Fourth, that the matter was contractual rather than possessory in nature. Finally, that the matter was not urgent. All these grounds found no favour with the lower Court.

[5] Aggrieved, the appellant noted an appeal against the judgement *a quo*.It relied on seven grounds of appeal. The appeal turns on the last ground of appeal. It reads:

> "7. The Court *a quo* erred in failing to discharge the interim order granted *ex parte* in circumstances where the respondent did not disclose material facts regarding a similar application filed by it on notice in the High Court."

[6] The history of the matter is this. On 14 January 2026 the respondent under case number HCH 31/26, filed an urgent Chamber application in the High Court against the applicant seeking a spoliation order. That application was on notice to the appellant. The founding affidavit was deposed to on 3 January 2026.Therein it was alleged that the spoliation had occurred on the same date.

[7] The relief which the High Court was asked to grant was that:

> "(a). The application for spoliation be and is hereby granted.
> (b). The respondent and all person (Sic) acting through it be and hereby ordered to restore peaceful and undisturbed possession of the property known as number 31 Fleetwood Road, Alexandra Park back to the applicant.
> (c). The respondent, and all person (Sic) acting through it be and hereby ordered /interdicted to not disturb peaceful and undisturbed possession of the property known as number 31 Fleet Road, Alexandra Park back to the applicant without Court order.
> (d)The respondent to pay costs on a legal practitioner client scale."

[8] The urgent Chamber application was placed before a judge of this Court. She disposed of it in Chambers on 8 January2016 through a Court order which reads:

> "The matter is not urgent and it is removed from the roll of urgent matters."

This order means that the matter joined the queue of cases on the ordinary roll.

[9] It was under these circumstances that the respondent went forum shopping. It was also guilty of material non-disclosure. Without disclosing that it had failed to obtain a spoliation order through the urgent Chamber book at the High Court the respondent, on 14 January 2026, relied on the same facts that it had placed before a judge of the High Court to seek the same relief before a Magistrate on an *ex parte* basis. The draft order reads in material part:

> "Draft Order
> Held at Harare
> Before Magistrate Mr/Mrs./Ms._____.

Whereupon, after reading documents filed of record and hearing Counsel a rule *nisi* is hereby issued returnable on the _____day of _____2026 calling upon the respondent to show cause why a final order should not be made in terms of the following terms:

FINAL RELIEF GRANTED

[1] The respondent be and is hereby ordered to restore full possession, occupation and control of the immovable property known as stand 31 Fleetwood Avenue, Alexander Park, Harare to the Applicant.

INTERIM RELIEF GRANTED

[1] Pending the return date the Respondent be and is hereby ordered to restore full and undisturbed possession of stand 31 Fleetwood Avenue, Alexander Park, Harare to the Applicant.
[2] Pending the return date, the respondent be and is hereby ordered to refrain from interfering with the occupation and control of the Applicant of the property being 31 Fleetwood Avenue, Alexander Park, Harare pending the return date.

SERVICE

The service of the rule *nisi* with supporting *ex parte* application and annexures shall be effected on the Respondents by Applicant's Legal Practitioners".

The interim relief, which was identical to the final relief sought, was granted on an *ex parte* basis by a Magistrate sitting in Chambers on 14 January 2026.This means the respondent had obtained, in substance, the very same relief on an *ex parte* basis before the Magistrate without disclosing that the same matter was pending on the High Court's ordinary roll.

[10] Mr *Nyamakura* referred us to *Beverley Building Society* v *Rgwafa* 2005(1) ZLR 109(S) where SANDURA JA said at 111G-112B:

"As the application was *ex parte,* Godfrey should have made a full disclosure of all the relevant information which was within his knowledge and which might have affected the granting of the order sought. In this regard, the learned authors Herbstein and Van Winsen: The Civil Practice of the Supreme Court of South Africa 4 ed state as follows at p 367:
'Although, generally, an applicant is entitled to embody in his supporting affidavits only allegations relevant to the establishment of his right, when he is bringing an *ex parte* application in which relief is claimed against another party he must make full disclosure of all the material facts that might affect the granting or otherwise of an order *ex parte*.The utmost good faith must be observed by litigants making *ex parte* applications in placing material facts before the Court, so much so that if an order has been made upon an *ex parte* application and it appears that material facts have been kept back, whether wilfully and *mala fide* or negligently, which might have influenced the decision of the Court whether to make an order or not, the Court has a discretion to set the order aside with costs on the ground of non-disclosure".

See also *Central (PVT) Ltd* v *Moyas* and *Anr* HH 57/2012 at p3, *Chatora* and *Ors* v *Chairperson Western Region Rent Board* HB 63/11, *JW Jagger and CO (Rhodesia) (Wholesaling)(Pvt)Ltd* v *Mubika* 1972(4) SA 100(R) at 102 and *Ex Parte* Bouwer and Similar Applications 2009(6) SA 382 (GNP)at 385 B-E.

[11] The knowledge of the pendency of the same matter before the High Court was disclosed to the lower Court by the appellant in the affidavit opposing the granting of the final relief. It was only then that the respondent withdrew the High Court matter. What this shows is that the respondent was guilty of wilful non-disclosure of the material fact that what it was seeking on an urgent *ex parte* basis before the Magistrate sitting in Chambers was the subject of an urgent Chamber application before a Judge of the High Court the outcome of which we now know. Without a doubt, the respondent was guilty not only of forum shopping in obtaining the interim relief but also of material non-disclosure. On that basis alone the application for a final order (which was no different from the interim order) should have been dismissed.

[12] We do not accept Ms Chinwawa-dzimba's submission that the *ex parte* application was based on an act of spoliation which occurred on 12 January 2026 whereas the urgent chamber application was predicated on an act of spoliation which happened on 3 January 2026.Our reading of the two applications do not support that submission. There is neither allegation nor evidence in the *ex parte* application that possession was regained after 3 January 2026 and was thereafter lost on 12 January 2026, triggering the filing of the *ex parte* application on 14 January 2026.

[13] We share Mr *Nyamakura's* view that in the substituted order on appeal the respondent should be penalised with an order of costs on a punitive scale. It abused court process not only through the material non disclosure already adverted to in this judgement but also in engaging in forum shopping. Such conduct warrants censure. See *A Adam* and *Company* (*Pvt) Ltd* and *Anor* v *Good Living Real Estate (Pvt) Ltd* 2021(1) ZLR 729(S) at 737, *Mahembe* v *Matambo* 2003 (1) ZLR 148 (H) at 150C –D and *Brummer* v *Gorfil Brothers Investments (Pty)Ltd en Andere* 1999(3) SA 389 (SCA) at 412 C-D.

[14] In view of our conclusion that the appeal turns on the last ground of appeal, the need to discuss the rest of the grounds of appeal does not arise.

ORDER

[15] IT IS ORDERED THAT:

[1] The appeal is allowed with costs.

[2] The judgement of the court *a quo* is set aside. It is substituted with the following

"The application is dismissed.
[2] The applicant shall pay the respondent's costs on the legal practitioner and client scale."

CHIKOWERO J: ……

TAKUVA J: …… I agree

Gill Godlonxon and Gerrans, appellant's legal practitioners
Chimwamurombe, legal practice, respondent's legal practitioners